

MASTER ELECTRICIAN OF RECORD EMPLOYMENT AGREEMENT

Vickery Electric

Beaumont, Texas

This Master Electrician of Record Employment Agreement ("Agreement") is entered into effective as of _____ ("Effective Date") by and between Vickery Electric ("Company") and _____ ("Employee").

1. Position; Status; Purpose

1.1 The Company employs Employee as a full-time, W-2, at-will employee in the role of Master Electrician of Record ("EOR") and Working Field Electrician.

1.2 This is a hands-on, tools-in-hand role. Employee will both:

- a. serve as the Company's supervising Texas Master Electrician of Record; and
- b. perform residential and light commercial field work during the startup and growth phase of the Company.

1.3 This Agreement does not create a partnership, joint venture, equity interest, ownership interest, or guaranteed term of employment.

1.4 Employee acknowledges that the Company owns and controls the business, including its name, customers, phone numbers, website, CRM, dispatch systems, pricing systems, brand, goodwill, and all operating systems, subject only to Employee's professional authority over code compliance and safety as stated in this Agreement.

2. At-Will Employment

2.1 Employment is at will. Either party may end the employment relationship at any time, with or without cause, and with or without advance notice, subject only to the pay, property return, transition, and incentive-compensation terms in this Agreement.

2.2 No statement by the Company, whether oral or written, shall alter at-will employment unless contained in a later written agreement signed by the Company and Employee.

3. Job Title and Core Role

3.1 Employee's title shall be Master Electrician of Record & Working Field Electrician.

3.2 Employee shall serve as the supervising Master Electrician assigned to the Company for contractor licensing, permit, and compliance purposes.

3.3 Employee shall also perform field electrical work personally and directly, particularly during the startup phase when the Company may operate with a lean crew structure.

4. Duties and Responsibilities

4.1 EOR Duties

Employee shall:

- a. maintain an active and valid Texas Master Electrician license in good standing;
- b. serve as the Company's supervising Master Electrician as required by law and licensing rules;
- c. review, approve, sign, and support permit-related documents when required;
- d. oversee compliance with the National Electrical Code, Texas requirements, and applicable local codes;
- e. stop, refuse, or require correction of unsafe, unlawful, or materially noncompliant work;
- f. cooperate in inspections, corrections, and regulator communications related to Company work; and
- g. supervise apprentices, helpers, or electricians working under the Company's license as operations expand.

4.2 Field Duties

Employee shall:

- a. perform residential and light commercial service work, installations, remodels, troubleshooting, lighting upgrades, panel-related work allowed by Company scope, and wiring tasks within Company offerings;
- b. diagnose electrical problems and complete work professionally and efficiently;
- c. use Company software, forms, checklists, timekeeping systems, and photo/documentation requirements;
- d. communicate professionally with customers;

- e. keep the worksite clean, safe, and organized; and
- f. assist in training apprentices and new hires as the Company grows.

5. Authority Split

5.1 Company-Controlled Business Functions. The Company exclusively controls:

- a. retail pricing;
- b. estimating logic and software;
- c. lead intake and marketing;
- d. dispatching and scheduling;
- e. territory strategy;
- f. collections, invoicing, and payment processing;
- g. CRM systems and operational workflows;
- h. hiring decisions, discipline, staffing, and compensation plans; and
- i. customer service policies and refund/discount authority.

5.2 Employee-Controlled Professional Functions. Employee controls:

- a. code-compliance judgment;
- b. safety judgment;
- c. approval or refusal of unsafe or noncompliant methods;
- d. permit/inspection compliance decisions; and
- e. technical field execution decisions, subject to Company scheduling and business systems.

5.3 If there is a conflict between production/profit and safety/code compliance, safety/code compliance shall control.

6. Service Area; Schedule; Work Expectations

6.1 Employee's normal service area includes Beaumont, Orange, Vidor, Lumberton, Mauriceville, Nederland, Port Neches, Port Arthur, Groves, Bridge City, and nearby areas in the Golden Triangle region.

6.2 Most work is expected to fall within approximately a 35-mile radius of Beaumont, Texas, with occasional larger projects or service calls beyond that radius.

6.3 Employee's normal target schedule is approximately 40 hours per week, generally Monday through Friday, with occasional Saturday work based on workload.

6.4 The Company may adjust schedules, routes, dispatch plans, and assigned work based on customer demand, staffing, seasonality, emergencies, and business needs.

7. Compensation

7.1 Base Pay

Employee shall be paid \$50.00 per hour.

7.2 Payroll

Employee shall be paid weekly through Company payroll, with all required tax withholdings and deductions.

7.3 Overtime

Employee shall be treated as a non-exempt employee unless changed in writing by the Company. Hours worked over 40 in a workweek shall be paid at 1.5 times the regular rate of pay, with any regular-rate adjustment required by law for nondiscretionary bonus earnings included on the applicable payroll or the next administratively practical payroll.

7.4 No Guaranteed Hours

Unless otherwise stated in writing, the Company does not guarantee any minimum number of weekly hours.

8. Benefits

8.1 Health Insurance

Beginning on the first day of the month following 60 days of employment, the Company shall provide an employer health-insurance contribution of up to \$640.00 per month, applied toward a Company-selected plan or lawful reimbursement arrangement then in effect.

8.2 Retirement Plan

Employee shall be eligible to participate in the Company's SIMPLE IRA plan in accordance with plan rules, with a 3% employer match if and when the plan is active and Employee is eligible under the plan documents.

8.3 Paid Time Off

- a. PTO accrual begins on day 91 of employment.
- b. PTO may be used beginning on day 121 of employment.
- c. PTO accrues at 2.3077 hours per biweekly pay period, which equals 60 hours per year if Employee remains full-time for the full year after eligibility begins.
- d. PTO bank cap is 60 hours. Once the cap is reached, accrual stops until PTO is used.
- e. Unused PTO does not pay out at separation unless the Company later adopts a separate written payout policy signed by the Company.
- f. PTO must be requested in advance when practical and is subject to business needs.

8.4 Vehicle

The Company shall provide a Company van for authorized work use, fuel, and ordinary maintenance.

8.5 Tools

The Company shall provide major job-related tools, ladders, testing equipment, and specialty equipment reasonably required for Company work. Employee shall provide normal personal hand tools unless the Company states otherwise in writing.

9. Travel and Vehicle Use

9.1 Drive time between jobs during the workday is paid.

9.2 Travel from the shop, supply house, or any required Company stop to the first job of the day, and travel from the last job of the day to any required Company stop, is paid if directed by the Company.

9.3 Normal commute time from home to the first job and from the last job to home is not paid unless the Company specifically directs Employee to perform work before or after such travel.

9.4 The Company vehicle is for authorized business use. Personal use is prohibited except for ordinary commuting or other use specifically authorized by the Company.

9.5 Employee must maintain a valid Texas driver's license and remain insurable under the Company's vehicle policy.

10. Introductory Period

10.1 The first 90 days of employment are an introductory period.

10.2 During the introductory period, the Company may evaluate performance, documentation habits, customer interaction, timeliness, safety, and fit.

10.3 Successful completion of the introductory period does not alter at-will employment.

11. Exact Per-Job Bonus Plan

11.1 Eligibility for Job Bonus

Employee is eligible for a per-job bonus only for a job:

- a. on which Employee is the primary assigned field electrician or primary supervising master actually performing or directly leading the work;
- b. that is closed out in the Company system;
- c. that has been paid in full by the customer; and
- d. that satisfies all bonus conditions below.

11.2 Bonus Amounts

The bonus amount is based on Collected Revenue for the individual job:

- \$50.00 for a job with Collected Revenue of \$0.01 to \$999.99
- \$100.00 for a job with Collected Revenue of \$1,000.00 to \$4,999.99
- \$150.00 for a job with Collected Revenue of \$5,000.00 or more

11.3 Definition of Collected Revenue

"Collected Revenue" means labor, material, and approved add-on/change-order revenue actually collected by the Company for that job, excluding:

- a. sales tax;
- b. finance charges;
- c. card-processing surcharge recapture, if any;
- d. separately reimbursed permit/inspection reimbursements; and
- e. chargebacks or refunded amounts.

11.4 Bonus Conditions

A job bonus is earned only if all of the following conditions are satisfied:

- a. Gross Margin Test: the job closes at 40.00% gross margin or higher.

For this Agreement,

Gross Margin % = (Collected Revenue - Direct Job Cost) / Collected Revenue × 100

- b. Direct Job Cost means:

- actual material cost charged to the job;
- permit and inspection costs charged to the job;
- equipment rental charged to the job;
- subcontractor cost charged to the job; and
- direct field labor cost charged to the job.

c. Direct Field Labor Cost means actual clocked field labor hours assigned to the job multiplied by the Company's written loaded labor rates in effect on the date the job was opened.

d. Documentation Test: all required photos, notes, forms, material records, time entries, and job-closeout items must be fully submitted by 11:59 p.m. local time on the same day the job is substantially completed.

e. Quality Test: there must be no workmanship callback within 14 calendar days after substantial completion. A workmanship callback means a return visit caused by installation error, avoidable omission, code defect, loose connection, incomplete function testing, or poor workmanship. It does not include customer-requested changes, unrelated new problems, or pre-existing concealed conditions.

f. Safety and Compliance Test: there must be no unresolved safety violation, failed inspection caused by workmanship, dishonest conduct, or material documentation failure attributable to Employee.

g. Budget/Control Test: there must be no unauthorized discount, unauthorized change order, unauthorized material purchase, or unapproved deviation from Company job scope that materially harmed job profitability.

11.5 When the Job Bonus Is Earned

A job bonus is earned on the later of:

- a. the date the customer has paid the job in full; or
- b. the 15th calendar day after substantial completion, provided no disqualifying workmanship callback occurred in the first 14 calendar days.

11.6 When the Job Bonus Is Paid

Earned job bonuses shall be paid on the next regular payroll after the earning date, or on the following payroll if administrative closeout is not complete in time for the next payroll run.

11.7 Shared Jobs

If two or more field employees materially share performance of a job, the Company may designate one primary employee to receive the bonus, or may split the stated bonus among them in writing before closeout. Unless the Company states otherwise in writing, the bonus belongs only to the primary assigned employee.

11.8 No Bonus on Certain Jobs

No job bonus is paid on:

- a. warranty-only work;
- b. rework or callbacks;
- c. internal shop tasks;
- d. unpaid jobs;
- e. jobs written off, refunded, or heavily disputed;
- f. jobs intentionally sold below the required margin by Company decision and marked “bonus excluded” before the job starts; or

g. jobs where Employee is not the primary assigned field electrician.

11.9 Bonus Changes

The Company may prospectively change the job-bonus plan in writing. No change may be applied retroactively to a job already substantially completed.

12. Exact Annual Profit-Share Plan

12.1 Profit-Share Eligibility

Employee is eligible for annual profit share only if:

- a. Employee has completed the 90-day introductory period during that fiscal year;
- b. Employee is actively employed on the last day of the fiscal year; and
- c. Employee remains employed through the payout date, unless Employee is terminated by the Company without cause after fiscal year-end but before payout.

12.2 Profit-Share Tiers

If the Company's Adjusted Net Profit for the fiscal year is:

- \$0.00 to \$75,000.00 → 0%
- \$75,000.01 to \$150,000.00 → 1.0%
- \$150,000.01 to \$250,000.00 → 2.0%
- \$250,000.01 to \$499,999.99 → 3.0%
- \$500,000.00 or more → 6.0%

12.3 Definition of Adjusted Net Profit

"Adjusted Net Profit" means the Company's ordinary net profit for the fiscal year as shown on the Company's year-end accrual-basis profit and loss statement after normal year-end adjustments, and after deducting all ordinary operating expenses, including without limitation:

- wages and payroll taxes;
- health insurance and benefits;
- retirement contributions;
- bonuses;
- materials;
- subcontractors;
- rent;
- utilities;
- fuel;
- repairs and maintenance;
- vehicle costs;
- insurance;
- software;
- advertising and marketing;
- legal and accounting fees;
- merchant fees;
- bad debt expense or write-offs;
- warranty expense;
- depreciation and amortization;
- interest expense; and
- all other ordinary business operating expenses.

Adjusted Net Profit does not include:

- a. owner capital contributions;
- b. loan proceeds;
- c. owner draws or distributions;
- d. principal payments on debt; or
- e. personal income taxes of owners.

12.4 First-Year Proration

If Employee is hired during a fiscal year, the annual profit-share amount shall be prorated based on the number of full calendar months Employee was employed after completion of the 90-day introductory period during that fiscal year.

12.5 When Profit Share Is Earned

Profit share is earned only when:

- a. the fiscal year has ended;
- b. the Company has finalized year-end books;
- c. Adjusted Net Profit has been determined by the Company; and
- d. Employee satisfies the eligibility requirements in Section 12.1.

12.6 When Profit Share Is Paid

Any earned profit share shall be paid within 30 days after final year-end close, but no later than March 31 following the end of the fiscal year, unless delayed by CPA/bookkeeping finalization outside the Company's reasonable control.

12.7 No Equity

Profit share is incentive compensation only. It does not give Employee any equity, membership, partnership rights, voting rights, claim to assets, or ownership rights in the Company.

13. Licensing and Compliance

13.1 Employee represents that Employee holds an active Texas Master Electrician license and is legally qualified to serve as the Company's Master Electrician of Record.

13.2 Employee shall immediately notify the Company in writing of any:

- a. license lapse;
- b. investigation;
- c. suspension;
- d. restriction;
- e. disciplinary action;
- f. criminal charge materially affecting duties; or
- g. loss of driving privileges.

13.3 If Employee's license becomes inactive, unavailable, restricted, suspended, or otherwise unusable for Company operations, the Company may immediately remove Employee from the EOR role, modify duties, suspend work, or terminate employment.

13.4 The Company shall maintain its own business insurance, contractor licensing, and ordinary operating liabilities. Employee shall not be personally responsible for Company debts, leases, customer refunds, or general business liabilities solely because Employee serves as EOR, except to the extent liability arises from Employee's personal misconduct, personal legal obligations, licensing obligations, unsafe conduct, dishonesty, or other responsibility imposed by law.

14. Customer Ownership; Company Property; Intellectual Property

14.1 All customers, leads, estimates, booked jobs, permits, job files, phone numbers, photos, pricing sheets, estimating logic, CRM data, SOPs, forms, checklists, and business goodwill are and shall remain the sole property of the Company.

14.2 Any workflow, form, checklist, process, spreadsheet, photo set, training document, quality-control procedure, or other work product created by Employee within the scope of employment belongs exclusively to the Company.

14.3 Employee shall not claim ownership of customer relationships developed through Company operations.

15. Confidentiality

15.1 During and after employment, Employee shall keep confidential and not use for any non-Company purpose any nonpublic Company information, including customer lists, pricing

models, marketing strategy, cost data, CRM data, job-costing methods, workflow systems, training materials, vendor pricing, passwords, financial information, and business plans.

15.2 Employee may use confidential information only as needed to perform duties for the Company.

15.3 Upon separation, Employee shall immediately return all confidential information and property.

16. Non-Solicitation

16.1 During employment and for 12 months after employment ends, Employee shall not directly solicit, for a competing electrical business, any Company customer whom Employee serviced or about whom Employee learned confidential information during the last 12 months of employment.

16.2 During employment and for 12 months after employment ends, Employee shall not directly solicit any Company employee or apprentice to leave the Company for a competing business.

16.3 This Section is intended to be interpreted only as broadly as enforceable under Texas law. If a court narrows it, the remaining portion shall still be enforced to the maximum lawful extent.

17. Slow Work Periods; Schedule Reductions

17.1 The Company may reduce schedules, change routes, reassign work, assign training, assign shop work, assign inventory or standards-development work, or temporarily reduce hours during slow periods.

17.2 No minimum hours are guaranteed unless set in a separate signed writing.

17.3 Employee may use available PTO during reduced-hour periods only if approved and available under Company policy.

18. Notice; Resignation; Termination

18.1 Because the role is operationally sensitive, the parties request at least one week of written notice before a voluntary resignation whenever practical.

18.2 The one-week notice request does not alter at-will employment and does not allow the Company to withhold earned hourly wages or earned overtime.

18.3 Failure to give one week of written notice may result in forfeiture only of unearned future incentive compensation, including any job bonus or profit share not yet earned under Sections 11 and 12, to the maximum extent permitted by law.

18.4 The Company may terminate employment immediately for cause, including unsafe work, dishonesty, customer theft, intoxication on duty, license issues, serious misconduct, repeated documentation failure, insubordination, or material code-compliance failures.

19. Final Pay

19.1 Final hourly wages and overtime shall be paid in accordance with applicable law and normal payroll processing.

19.2 Earned job bonuses shall be paid according to Section 11.

19.3 Earned profit share shall be paid according to Section 12.

19.4 Unearned bonuses, unearned profit share, and non-payout PTO are not owed unless expressly provided in this Agreement or another signed written Company policy.

20. Return of Property and Transition Duties

20.1 Upon separation, Employee shall immediately return all Company property, including:

- a. van;
- b. keys and fuel cards;
- c. tablets, phones, chargers, and electronics;
- d. Company tools and equipment;
- e. uniforms;
- f. paperwork;
- g. permit files;
- h. access credentials; and
- i. all confidential information.

20.2 Upon resignation or termination, Employee shall reasonably assist in transition of:

- a. open permits;
- b. scheduled inspections;
- c. active jobs;

d. warranty issues; and

e. apprentice or crew supervision handoff.

21. Safety; Documentation; Performance Standards

21.1 Employee shall comply with Company safety policies, PPE requirements, ladder safety rules, lockout/tagout rules where applicable, driving rules, and documentation standards.

21.2 Required photos, time entries, material notes, and closeout records are material job duties.

21.3 Repeated failure to document work correctly is grounds for discipline and may disqualify bonus eligibility.

22. No Personal Side Work Through Company Relationships

22.1 Employee shall not divert, capture, or perform side work for Company leads, customers, former customers, referrals, or active estimates unless expressly authorized in writing by the Company.

22.2 Any Company-discovered diversion of customers or estimates is grounds for immediate termination for cause.

23. Policy Changes

23.1 The Company may prospectively revise policies, handbooks, route structures, technology systems, benefits, and bonus plans in writing.

23.2 No prospective policy change may reduce pay already earned for hours already worked.

24. Dispute Resolution; Venue

24.1 This Agreement shall be governed by the laws of the State of Texas.

24.2 Venue for any dispute arising from this Agreement shall lie in the county where the Company's principal office is located, unless the parties agree otherwise in writing.

25. Entire Agreement

25.1 This Agreement is the entire agreement between the parties regarding the subject matter stated here and supersedes prior oral or written discussions on that subject.

25.2 Any amendment must be in writing and signed by the Company, except that prospective policy changes authorized under this Agreement may be issued by written Company notice.

26. Severability

If any provision of this Agreement is held unenforceable, the remaining provisions shall remain in full force, and any partially unenforceable provision shall be enforced to the maximum extent permitted by law.

27. Acknowledgment

Employee acknowledges that Employee has read this Agreement, understands it, has had the opportunity to ask questions, and enters into it voluntarily.

COMPANY

Vickery Electric

By: _____

Name: _____

Title: _____

Date: _____

EMPLOYEE

Signature: _____

Name: _____

Date: _____

EXHIBIT A

CURRENT COMPENSATION SUMMARY

- Base Pay: \$50.00/hour
- Payroll: Weekly
- Overtime: 1.5x regular rate over 40 hours/week
- Health Contribution: Up to \$640/month
- Retirement: SIMPLE IRA with 3% employer match, subject to plan eligibility
- PTO:
 - Accrual starts day 91
 - Use starts day 121
 - Accrual rate: 2.3077 hours per biweekly pay period
 - Annual accrual: 60 hours
 - PTO cap: 40 hours
 - Payout at separation: No, unless later promised in signed writing
- Vehicle: Company truck, fuel, ordinary maintenance
- Hand Tools: Employee provides normal hand tools
- Job Bonus:
 - \$50 for jobs collecting \$0.01–\$999.99
 - \$100 for jobs collecting \$1,000.00–\$4,999.99
 - \$150 for jobs collecting \$5,000.00+
 - Requires 40.00%+ gross margin, full documentation, no workmanship callback within 14 days, and job paid in full
- Annual Profit Share:
 - 0% on Adjusted Net Profit of \$0–\$75,000

- 1% on \$75,000.01–\$150,000
- 2% on \$150,000.01–\$250,000
- 3% on \$250,000.01–\$499,999.99
- 6% on \$500,000+